

LA-CCRP-ART-989

ARTICLE 989 MOTION FOR EXPUNGEMENT, REQUESTING EXPUNGEMENT BY REDACTION UNDER ARTICLE 985

Assigned component identity: la-985-expungement-by-redaction-primary-filing-1

Municipal and Traffic Court of New Orleans, Traffic Division, STATE OF LOUISIANA

PARISH: Parish of Saint John the Baptist

STATE OF LOUISIANA v. Maria-Alejandra O'Shaughnessy-Whitfield

DOCKET OR CASE NUMBER: TEST-BOUNDARY-2026-0000000000000001

DIVISION OF THE COURT: Division Z-Long

MOTION FOR EXPUNGEMENT, REQUESTING EXPUNGEMENT BY REDACTION UNDER ARTICLE 985

La. C.Cr.P. art. 985, on the statutory Article 989 form composed from the committed LA-STATUTORY-FORMS authority.

Article 986 provides that only the statutory forms shall be used, so there is no separate redaction motion and no drafted pleading. This motion is the Article 989 form; the redaction relief itself is granted, if it is granted, in the dedicated Article 985 paragraph of the Article 992 Order of Expungement filed with it.

PART I - DEFENDANT INFORMATION

Mover full legal name: Maria-Alejandra O'Shaughnessy-Whitfield

Mover date of birth: 1968-12-31

Race:

Gender:

Last four digits of the Social Security number:

Louisiana driver's licence number:

THE RECORD FOR WHICH EXPUNGEMENT BY REDACTION IS SOUGHT

Date of arrest: 2013-12-31

Arresting law enforcement agency: Saint John the Baptist Parish Sheriff's Office, Criminal Patrol Division

Original arrest charge and statute for every count as they appear on the state rap sheet:

.....
.....

How many separate charges or counts this arrest carries: Three charges on one arrest

How the case against the mover ended:

Date the case ended that way: 2014-06-30

Arrest or booking number shown on the state rap sheet:

SID number shown on the state rap sheet:

Arresting agency item number:

THE SHARED RECORD - ARTICLE 985

Article 985(A) provides that if a record includes the name of more than one individual and one or more of them is entitled to an expungement of an arrest or conviction under Title XXXIV, any individual so entitled may petition the court to have records related to that individual's arrest or conviction expunged by redaction.

Who else is named in the record of this arrest or conviction:

.....

Whether anyone else named in the record is also entitled to have it expunged, as far as the mover knows:

.....

Which agencies and offices hold records of this arrest or conviction, as far as the mover knows:

.....

.....

Article 985(B) provides that if the court grants expungement by redaction, the name of the individual and all other identifying information regarding that individual shall be redacted from all records regarding the arrest and conviction, and the redacted records remain available for public access. The record is not sealed as to the other individuals named in it.

PART II - THE UNDERLYING ENTITLEMENT

The ordinary route that gives the mover the right to an expungement of this record:

.....

Date the Louisiana criminal background check was ordered: 2026-08-01

Article 985 is a form of relief for a person who is already entitled to an expungement of the arrest or conviction under Title XXXIV. It is not an independent ground of eligibility. The Part II section of the Article 989 form that matches the route named above is the section to complete, and whichever certification that route requires is the certification to attach.

Whether the mover is now in the physical custody of the Department of Public Safety and Corrections serving a sentence at hard labour: No

Article 975 bars a person in the physical custody of the Department of Public Safety and Corrections serving a sentence at hard labour from filing. If that answer is yes, this motion may not be filed.

The mover asks the court to expunge by redaction, under Article 985, the records related to the mover's arrest or conviction identified above, and, where an Affidavit of No Opposition executed by each entity named in Article 979 is attached, to grant the motion without a contradictory hearing as the Article 991 Order provides.

SIGNATURE BLOCKS

LA-CCRP-ART-989, assigned component identity la-985-expungement-by-redaction-primary-filing-1

IF REPRESENTED BY COUNSEL - ATTORNEY BLOCK

Attorney name in the represented-mover block:

Attorney bar number in the represented-mover block:

Attorney address in the represented-mover block:

Attorney telephone in the represented-mover block:

Attorney signature in the represented-mover block:

This block is left entirely blank on this packet. This packet holds no record that the mover is represented by counsel, and an attorney block is completed by counsel or not at all.

IF NOT REPRESENTED BY COUNSEL - UNREPRESENTED MOVER BLOCK

Signature of the unrepresented mover:

Date of the mover's signature:

Printed name: Maria-Alejandra O'Shaughnessy-Whitfield

FOR THE CLERK - LEAVE BLANK

Filed on stamp applied by the clerk:

Certificate of service filed by the clerk showing the mailing date:

Under Article 979 the clerk serves the motion and files the certificate of service. The mover serves nobody.

LA-CCRP-ART-991
ARTICLE 991 ORDER

Assigned component identity: la-985-expungement-by-redaction-proposed-order-2

Municipal and Traffic Court of New Orleans, Traffic Division, STATE OF LOUISIANA
PARISH: Parish of Saint John the Baptist
STATE OF LOUISIANA v. Maria-Alejandra O'Shaughnessy-Whitfield
DOCKET OR CASE NUMBER: TEST-BOUNDARY-2026-0000000000000001
DIVISION OF THE COURT: Division Z-Long

ORDER

La. C.Cr.P. art. 991, on the statutory Article 991 form composed from the committed LA-STATUTORY-FORMS authority.

COURT USE ONLY - UNEXECUTED PROPOSED ORDER. Nothing on this page has been decided, and no relief exists unless and until a judge completes and signs it and the clerk enters it.

Ordering paragraphs on the Article 991 Order:

.....
.....
.....
.....

Finding that no contradictory hearing is required:

Where an Affidavit of No Opposition executed by each entity named in Article 979 is attached to the motion, the Article 991 Order provides that no contradictory hearing is required. That finding is the court's to make.

Return date set for a contradictory hearing:

Date of the court order:

Place of the court order:

Signature of the judge on the Article 991 Order:

LA-CCRP-ART-992

ARTICLE 992 ORDER OF EXPUNGEMENT, CARRYING THE ARTICLE 985 REDACTION PARAGRAPH

Assigned component identity: la-985-expungement-by-redaction-proposed-order-3

Municipal and Traffic Court of New Orleans, Traffic Division, STATE OF LOUISIANA

PARISH: Parish of Saint John the Baptist

STATE OF LOUISIANA v. Maria-Alejandra O'Shaughnessy-Whitfield

DOCKET OR CASE NUMBER: TEST-BOUNDARY-2026-0000000000000001

DIVISION OF THE COURT: Division Z-Long

ORDER OF EXPUNGEMENT

La. C.Cr.P. art. 992, on the statutory Article 992 form composed from the committed LA-STATUTORY-FORMS authority.

COURT USE ONLY - UNEXECUTED PROPOSED ORDER. The mover supplies the caption and the identifiers of the record to be redacted, and nothing else on this page.

THE RECORD FOR WHICH EXPUNGEMENT BY REDACTION IS SOUGHT

Date of arrest: 2013-12-31

Arresting law enforcement agency: Saint John the Baptist Parish Sheriff's Office, Criminal Patrol Division

Original arrest charge and statute for every count as they appear on the state rap sheet:

.....
.....

How many separate charges or counts this arrest carries: Three charges on one arrest

How the case against the mover ended:

Date the case ended that way: 2014-06-30

THE SHARED RECORD - ARTICLE 985

Article 985(A) provides that if a record includes the name of more than one individual and one or more of them is entitled to an expungement of an arrest or conviction under Title XXXIV, any individual so entitled may petition the court to have records related to that individual's arrest or conviction expunged by redaction.

Who else is named in the record of this arrest or conviction:

.....

Whether anyone else named in the record is also entitled to have it expunged, as far as the mover knows:

.....

Which agencies and offices hold records of this arrest or conviction, as far as the mover knows:

.....

.....

Article 985(B) provides that if the court grants expungement by redaction, the name of the individual and all other identifying information regarding that individual shall be redacted from all records regarding the arrest and conviction, and the redacted records remain available for public access. The record is not sealed as to the other individuals named in it.

Whether the motion is granted or denied:

Findings on the Article 992 Order of Expungement:

.....

.....

THE ARTICLE 985 REDACTION PARAGRAPH - FOR THE COURT

The Article 985 redaction paragraph, including the identification of each record location and the information to be redacted:

.....
.....
.....
.....

This paragraph is the court's. Article 985(C) relieves the clerk of liability where the order does not specifically identify all locations of the records to be expunged or specify the information to be redacted, which is precisely why the paragraph is written by the judge and not by this packet. The lines above for who else is named in the record and which offices hold it are the mover's to complete before filing, so that the court has those answers in front of it when it writes this paragraph.

Decretal paragraphs on the Article 992 Order of Expungement:

.....
.....
.....
.....

Date of the court order:

Place of the court order:

Signature of the judge on the Article 992 Order of Expungement:

la-985-expungement-by-redaction-instructions-6

ARTICLE 985 PARTICIPANT AND FILING INSTRUCTIONS

Assigned component identity: la-985-expungement-by-redaction-instructions-6

Participant full legal name on the instructions: Maria-Alejandra O'Shaughnessy-Whitfield

Expungement by Redaction of Records with References to Multiple Individuals (La. C.Cr.P. art. 985)

Prepared for Maria-Alejandra O'Shaughnessy-Whitfield. Packet set la-985-expungement-by-redaction-set, version 1.0.0.

This packet set serves 1 route(s):

- obligation:track-pathway:LA:la-985-expungement-by-redaction:expungement-by-redaction-for-multi-person-records

What is in this packet

- la-985-expungement-by-redaction-primary-filing-1 - Article 989 Motion for Expungement, requesting expungement by redaction under Article 985 (primary_filing, required).

- la-985-expungement-by-redaction-proposed-order-2 - Article 991 Order (proposed_order, required).

- la-985-expungement-by-redaction-proposed-order-3 - Article 992 Order of Expungement, carrying the Article 985 redaction paragraph (proposed_order, required).

- la-985-expungement-by-redaction-instructions-6 - Article 985 Participant and Filing Instructions (instructions, required).

What is not generated, and the condition the record states

- la-985-expungement-by-redaction-fee-waiver-4 (fee_waiver, LA-CCRP-ART-988): Generated where the petitioner's underlying entitlement is a non-conviction ground and the Article 983(F) exemption may apply. This packet does not meet that condition, so the component is not generated.

- la-985-expungement-by-redaction-continuation-5 (continuation, LA-CCRP-ART-993): Used only where the arrest carries more charges or counts than the Article 989 motion's own fields hold. This packet does not meet that condition, so the component is not generated.

The Article 993 supplemental sheet is a statutory form for which the committed legal-design record states that no template exists, none is counsel-approved and no implementation is authorized. Where your arrest carries more charges or counts than the Article 989 motion holds, ask the clerk of court for the Article 993 supplemental sheet rather than adding pages of your own; Article 986(B) permits a supplemental form only so far as it adheres to the statutory form.

What expungement by redaction is, and what it does not do

Article 985(A) provides that if a record includes the name of more than one individual and one or more of them is entitled to an expungement of an arrest or conviction under Title XXXIV, any individual so entitled may petition the court to have records related to that individual's arrest or conviction expunged by redaction. Article 985(B) provides that if the court grants expungement by redaction, the name of the individual and all other identifying information regarding that individual shall be redacted from all records regarding the arrest and conviction, and the redacted records remain available for public access. Article 985(C) relieves the clerk of liability where the order does not specifically identify all locations of the records to be expunged or specify the information to be redacted. Article 972(3) defines the term. The relief runs on the Article 989 motion and the Article 992 order, whose text contains the dedicated redaction paragraph. Confirmed against the current official text; Article 985 has not been amended since Acts 2014, No. 145.

- Article 985 is not a ground of eligibility of its own. You must already be entitled to an expungement of this arrest or conviction under Article 976, 977 or 978. The waiting period is whichever of those articles gives you that entitlement; Article 985 adds none.

- Article 985(B) redacts your name and your other identifying information from the records. It does not seal the record. The redacted record stays available for public access as to everyone else named in it.

- The redaction paragraph is written by the judge, on the Article 992 Order. Article 985(C) relieves the clerk of liability where the order does not identify every location of the records or specify the information to be redacted, so the more completely you can tell the court which offices hold the record, the better the order can be written. Blank lines for who else is named and for which offices hold the record are printed on both the motion and the proposed Article 992 order for that reason: they are your answers to write, and this packet holds none of them.

- If the record names only you, there is nothing to redact and the ordinary expungement track is the right one instead.

Everything the committed record requires to be in place before filing (all 18 item(s) it lists)

This list is the packet set's own. Some items are yours, some belong to the district attorney, the clerk or the judge. Every one of them is reproduced here, in the record's own words and in the record's own order, so that nothing on it reaches you shortened.

- Item 1 of 18: Obtain Louisiana criminal background check dated within the past sixty days. Louisiana State Police recommends a fingerprint-based Right to Review, because the motion must match the state rap sheet on arrest and booking date, original arrest charge, arrest number and counts. Order it so it is still inside its sixty-day life on the day the motion is filed; the Article 989 form marks it required on its face.

- Item 2 of 18: Obtain Bill of information or indictment for each charge. Ask the clerk of court in the parish of arrest or conviction for a copy of the bill of information or indictment for each charge on the arrest.

- Item 3 of 18: Obtain Minute entry showing the final disposition. Ask the clerk of court for the minute entry that shows how each charge was finally disposed of.

- Item 4 of 18: Check your answer to "How did the case against you end?" against Minute entry showing the final disposition, and correct the packet if they disagree.

- Item 5 of 18: Obtain Returned Article 988 Motion for Fee Exemption, completed and signed by the district attorney. The packet gives you the Article 988 form with your own fields filled in. Take or send it to the district attorney's office BEFORE the motion is filed. The district attorney or a designee completes the certification boxes and signs, and returns it within fifteen days. Append it to the motion at filing only if you are found eligible. Filing without it means paying the fee, and Article 983 makes the fee non-refundable even if the motion is denied.

- This packet does not give you the Article 988 form. la-985-expungement-by-redaction-fee-waiver-4 is conditional on the record, and the condition the record states is "Generated where the petitioner's underlying entitlement is a non-conviction ground and the Article 983(F) exemption may apply." - a condition this packet does not meet, so the component is not generated and no Article 988 form is enclosed. Everything else the item says still applies: where that condition applies to you, ask the clerk of court or the district attorney's office for the Article 988 form, and take or send it to the district attorney before the motion is filed. If you file without it you pay the fee, and Article 983 makes the fee non-refundable even if the motion is denied.

- Item 6 of 18: Obtain District attorney certification letter for the underlying entitlement. Whichever certification the underlying Article 976, 977 or 978 basis requires. The packet's cover request names the exact certification for the basis selected.

- Item 7 of 18: Obtain Affidavit of No Opposition from each named agency. The agencies' own instrument on the Article 990 form. LegalEase cannot prepare, complete or sign it.

- Item 8 of 18: Every finding, ruling, date, place and signature on the Article 991 Order - Article 991 Order - the ordering paragraphs, the date and place line and the judge's signature line.

- Item 9 of 18: Every granting or denying paragraph, finding, date, place and signature on the Article 992 Order of Expungement - Article 992 Order of Expungement - the decretal paragraphs, the date and place line and the judge's signature line.

- Item 10 of 18: Race and gender - Article 989 Motion, Part I Defendant Information.

- Item 11 of 18: The participant's signature and the date of signing - Article 989 Motion, unrepresented-mover signature block on the final page.

- Item 12 of 18: Every certification box and the district attorney's signature on the Article 988 Motion for Fee Exemption - Article 988 Motion for Fee Exemption, the certification section and signature block.

- Item 13 of 18: The whole of the Article 990 Affidavit of Response - Not printed in the participant packet; described in the filing instructions only.

- Item 14 of 18: The clerk's service of the motion and of the order and judgment - Not printed in the participant packet; described in the filing instructions only.

- Item 15 of 18: The redaction paragraph of the Article 992 Order, including the identification of each record location and the information to be redacted - Article 992 Order of Expungement - the Article 985 redaction paragraph.

- Item 16 of 18: The mover signs the Article 989 Motion in the block headed 'If not represented by counsel'. LegalEase leaves the signature and date blank.

- Item 17 of 18: Article 983(A) caps the total cost at five hundred fifty dollars, collected by the clerk at filing and non-refundable even if the motion is denied.

- Item 18 of 18: Article 983(F) through the Article 988 Motion for Fee Exemption where the underlying basis meets its grounds.

What you must supply before filing

Check every prefilled fact against your own court record and your background check, and correct the packet where they disagree. The blanks below are deliberately empty and are yours to complete.

Document | Blank on the document | What you must supply

LA-CCRP-ART-989 | Original arrest charge and statute for every count as they appear on the state rap sheet | each charge at the time of arrest - the original arrest charge and statute for every count, exactly as the state rap sheet writes them, not the charge you were finally convicted of and not the amended charge, and not leaving a count out

LA-CCRP-ART-989 | How the case against the mover ended | how the case against you ended, in the words your own court record uses

LA-CCRP-ART-989 | The ordinary route that gives the mover the right to an expungement of this record | which ordinary route gives you the right to an expungement of this record - Article 976 for an arrest without conviction, Article 977 for a misdemeanour conviction, or Article 978 for a felony conviction

LA-CCRP-ART-989 | Who else is named in the record of this arrest or conviction | who else is named in the record of this arrest or conviction

LA-CCRP-ART-989 | Whether anyone else named in the record is also entitled to have it expunged, as far as the mover knows | whether, as far as you know, anyone else named in the record is also entitled to have it expunged

LA-CCRP-ART-989 | Which agencies and offices hold records of this arrest or conviction, as far as the mover knows | which agencies and offices hold records of this arrest or conviction, as far as you know

LA-CCRP-ART-989 | Race | your race, written as the state rap sheet writes it, so Part I matches the record the Bureau holds

LA-CCRP-ART-989 | Gender | your gender, written as the state rap sheet writes it, so Part I matches the record the Bureau holds

LA-CCRP-ART-989 | Last four digits of the Social Security number | the last four digits of your Social Security number, written on the form by hand at the moment you file

LA-CCRP-ART-989 | Arrest or booking number shown on the state rap sheet | the arrest or booking number (ATN) exactly as your Right to Review or sheriff's background check prints it

LA-CCRP-ART-989 | SID number shown on the state rap sheet | your SID number exactly as your rap sheet prints it, or leave it blank if your rap sheet shows none

LA-CCRP-ART-989 | Arresting agency item number | the arresting agency's item number for this arrest, from your rap sheet or the agency's own report

LA-CCRP-ART-989 | Louisiana driver's licence number | your Louisiana driver's licence number, or leave it blank if you have never held one

LA-CCRP-ART-992 | Original arrest charge and statute for every count as they appear on the state rap sheet | each charge at the time of arrest - the original arrest charge and statute for every count, exactly as the state rap sheet writes them, not the charge you were finally convicted of and not the amended charge, and not leaving a count out

LA-CCRP-ART-992 | How the case against the mover ended | how the case against you ended, in the words your own court record uses

LA-CCRP-ART-992 | Who else is named in the record of this arrest or conviction | who else is named in the record of this arrest or conviction

LA-CCRP-ART-992 | Whether anyone else named in the record is also entitled to have it expunged, as far as the mover knows | whether, as far as you know, anyone else named in the record is also entitled to have it expunged

LA-CCRP-ART-992 | Which agencies and offices hold records of this arrest or conviction, as far as the mover knows | which agencies and offices hold records of this arrest or conviction, as far as you know

What you must obtain or confirm before filing (20 item(s) held by the committed track registry)

- obtain_document (required, required before filing): Obtain Louisiana criminal background check dated within the past sixty days. Louisiana State Police recommends a fingerprint-based Right to Review, because the motion must match the state rap sheet on arrest and booking date, original arrest charge, arrest number and counts. Order it so it is still inside its sixty-day life on the day the motion is filed; the Article 989 form marks it required on its face. Obtained from: Louisiana State Police (Right to Review) or the parish sheriff.

- obtain_document (conditional, required before filing): Obtain Bill of information or indictment for each charge. Ask the clerk of court in the parish of arrest or conviction for a copy of the bill of information or indictment for each charge on the arrest. Obtained from: Clerk of court for the parish. Condition: Applies where a prosecution was instituted, so a charging instrument exists.

- obtain_document (conditional, required before filing): Obtain Minute entry showing the final disposition. Ask the clerk of court for the minute entry that shows how each charge was finally disposed of. Obtained from: Clerk of court for the parish. Condition: Applies where the case reached a disposition on the court's minutes.

- confirm_answer (conditional, required before filing): Check your answer to "How did the case against you end?" against Minute entry showing the final disposition, and correct the packet if they disagree. Condition: Applies where the case reached a disposition on the court's minutes.

- obtain_document (conditional, required before filing): Obtain Returned Article 988 Motion for Fee Exemption, completed and signed by the district attorney. The packet gives you the Article 988 form with your own fields filled in. Take or send it to the district attorney's office BEFORE the motion is filed. The district attorney or a designee completes the certification boxes and signs, and returns it within fifteen days. Append it to the motion at filing only if you are found eligible. Filing without it means paying the fee, and Article 983 makes the fee non-refundable even if the motion is denied. Obtained from: The district attorney's office for the parish. Condition: Applies only where the participant may qualify for the Article 983(F) fee exemption.

- This packet does not give you the Article 988 form. la-985-expungement-by-redaction-fee-waiver-4 is conditional on the record, and the condition the record states is "Generated where the petitioner's underlying entitlement is a non-conviction ground and the Article 983(F) exemption may apply." - a condition this packet does not meet, so the component is not generated and no Article 988 form is enclosed. Everything else the item says still applies: where that condition applies to you, ask the clerk of court or the district attorney's office for the Article 988 form, and take or send it to the district attorney before the motion is filed. If you file without it you pay the fee, and Article 983 makes the fee non-refundable even if the motion is denied.

- obtain_document (conditional, required before filing): Obtain District attorney certification letter for the underlying entitlement. Whichever certification the underlying Article 976, 977 or 978 basis requires. The packet's cover request names the exact certification for the basis selected. Obtained from: The district attorney's office for the parish. Condition: Applies where the underlying entitlement is the Article 977(A)(2) or Article 978(A)(2) route, or where the Article 989 checklist requires a certification for the chosen basis.

- obtain_document (conditional, required before filing): Obtain Affidavit of No Opposition from each named agency. The agencies' own instrument on the Article 990 form. LegalEase cannot prepare, complete or sign it. Obtained from: The district attorney, the Louisiana Bureau of Criminal Identification and Information and the arresting law-enforcement agency. Condition: Optional; the track does not depend on it.

- complete_field (required, required before filing): Every finding, ruling, date, place and signature on the Article 991 Order - Article 991 Order - the ordering paragraphs, the date and place line and the judge's signature line.

- complete_field (required, required before filing): Every granting or denying paragraph, finding, date, place and signature on the Article 992 Order of Expungement - Article 992 Order of Expungement - the decretal paragraphs, the date and place line and the judge's signature line.

- complete_field (required, required before filing): Race and gender - Article 989 Motion, Part I Defendant Information.

- complete_field (required, required before filing): The participant's signature and the date of signing - Article 989 Motion, unrepresented-mover signature block on the final page.

- complete_field (required, required before filing): Every certification box and the district attorney's signature on the Article 988 Motion for Fee Exemption - Article 988 Motion for Fee Exemption, the certification section and signature block.

- complete_field (required, required before filing): The whole of the Article 990 Affidavit of Response - Not printed in the participant packet; described in the filing instructions only.

- complete_field (required, required before filing): The clerk's service of the motion and of the order and judgment - Not printed in the participant packet; described in the filing instructions only.

- complete_field (required, required before filing): The redaction paragraph of the Article 992 Order, including the identification of each record location and the information to be redacted - Article 992 Order of Expungement - the Article 985 redaction paragraph.

- sign (required, required before filing): The mover signs the Article 989 Motion in the block headed 'If not represented by counsel'. LegalEase leaves the signature and date blank.

- pay_fee (required, required before filing): Article 983(A) caps the total cost at five hundred fifty dollars, collected by the clerk at filing and non-refundable even if the motion is denied.

- apply_fee_waiver (conditional, required before filing): Article 983(F) through the Article 988 Motion for Fee Exemption where the underlying basis meets its grounds. Condition: Applies only when the participant cannot pay the filing fee.

- serve_party (required): The participant does not serve anyone. Under Article 979 the clerk of court serves notice of the motion by United States mail or electronically on the district attorney of the parish of conviction, the Louisiana Bureau of Criminal Identification and Information and the arresting law-enforcement agency, and files a certificate of service showing the mailing date. Under Article 982, if expungement is granted the clerk serves the order and judgment on the district attorney, the Bureau, the sheriff of the parish of conviction and the arresting agency.

- file (required): File the Article 989 Motion for Expungement with the proposed Article 991 Order and the proposed Article 992 Order of Expungement with the clerk of court in the parish of arrest or conviction. Article 972.1 gives district courts, city and parish courts, mayor's and traffic courts, juvenile and family courts, and the New Orleans municipal and traffic courts authority within their trial jurisdiction. Article 986 provides that only the forms in Articles 987, 988, 989, 990, 991, 992, 993, 994, 995 and 998 shall be used, so there is no drafted pleading and no local variant; Article 986(C) lets a clerk alter the form only to show the name of that court.

Where this is filed

- Venue: The court with trial jurisdiction over the offence in the parish of arrest or conviction, under Article 972.1.

- Destination (clerk): Clerk of court for the parish of arrest or conviction

- File the Article 989 motion with the proposed Article 991 and Article 992 orders, selecting the redaction relief in the Article 992 order. The clerk serves under Article 979.

What it costs, and the fee exemption

- Fees: Article 983(A) caps the total cost at five hundred fifty dollars, collected by the clerk at filing and non-refundable even if the motion is denied.

- Fee waiver: Article 983(F) through the Article 988 Motion for Fee Exemption where the underlying basis meets its grounds.

Notice, objection and service

- Notice and objection: Under Article 980 any entity served under Article 979 may object by filing an affidavit of response, with reasons and with service on the defendant, within sixty days from the date of service of the motion. Since 1 August 2015 the Louisiana Bureau of Criminal Identification and Information is on the same sixty-day period as everyone else. Article 980(C) lets the court grant one extension of not more than thirty days beyond the original sixty. A timely objection means a contradictory hearing, which the objecting party must ask to have set. Where an Affidavit of No Opposition executed by each named agency is attached to the motion, the Article 991 Order states that no contradictory hearing is required and the motion may be granted ex parte.

- Service: The participant does not serve anyone. Under Article 979 the clerk of court serves notice of the motion by United States mail or electronically on the district attorney of the parish of conviction, the Louisiana Bureau of Criminal Identification and Information and the arresting law-enforcement agency, and files a certificate of service showing the mailing date. Under Article 982, if expungement is granted the clerk serves the order and judgment on the district attorney, the Bureau, the sheriff of the parish of conviction and the arresting agency.

Signing

- Signature: The mover signs the Article 989 Motion in the block headed 'If not represented by counsel'. LegalEase leaves the signature and date blank.

- Notarization: none

Fields deliberately left blank

- Sign and date the unrepresented-mover block yourself, after reading the completed motion. If you are represented, give the packet to your attorney; the attorney block belongs to counsel and is left blank here.

- Leave every ordering paragraph, finding, granted-or-denied election, return date, date, place and judge's signature on the Article 991 Order and the Article 992 Order of Expungement blank. Those are the court's.

- Leave the clerk's filed-on stamp and the clerk's certificate of service blank. Article 979 makes service the clerk's act.

- The Article 990 Affidavit of Response is the responding entity's own instrument. It is not printed in this packet and you never complete it.

Stop self-help and get legal help (all 6 stop conditions the record holds)

- Stop 1 of 6: Any co-defendant case. Counsel keeps co-defendant matters on the referral list, and this track exists precisely because a co-defendant appears in the record.

- Stop 2 of 6: Whether redaction rather than full expungement is the correct request is unclear.

- Stop 3 of 6: The relationship between the petitioner's record and the shared record is disputed.

- Stop 4 of 6: Any named agency files an Article 990 affidavit of response objecting to the motion.

- Stop 5 of 6: The court sets a contradictory hearing under Article 980(D).

- Stop 6 of 6: The participant is in hard-labour custody, so Article 975 bars filing.

Hard eligibility boundaries the record states (3 exclusion(s))

- A person who is not independently entitled to an expungement of the arrest or conviction under Title XXXIV. Article 985 is a form of relief for someone already entitled under Article 976, 977 or 978; it is not an independent eligibility ground.

- A record that names only the petitioner. Where no other individual appears in the record there is nothing to redact and the ordinary expungement track applies instead.

- A person in the physical custody of the Department of Public Safety and Corrections serving a sentence at hard labour may not file (Art. 975).

Waiting periods:

- Expungement by redaction: None of its own. The waiting period is whichever of Articles 976, 977 or 978 gives the petitioner the underlying entitlement to expungement.

What the committed record requires these instructions to carry

Sequencing is the deliverable in Louisiana. The instructions carry, in order: order the Right to Review or sheriff's background check and watch its sixty-day life; complete the participant fields of the Article 988 fee exemption and deliver it to the district attorney BEFORE filing, expecting it back within fifteen days; request whichever Article 989 certification letters the chosen eligibility basis needs; file with the clerk with the fee or the returned exemption; the clerk serves the district attorney, the Bureau and the arresting agency under Article 979; agencies have sixty days from service to object under Article 980, extendable once by up to thirty days; an Affidavit of No Opposition from each named agency attached to the motion supports an ex parte grant with no contradictory hearing; if expungement is granted the clerk serves the order and judgment under Article 982. It also carries the Louisiana State Police list of common fatal errors: wrong arrest date, using the amended charge instead of the original arrest charge, omitting counts, putting misdemeanours and felonies in the wrong section, missing dispositions or certifications, and choosing the wrong eligibility basis. On this track the instructions add that Article 985(B) leaves the redacted record publicly available as to the other individuals named, that Article 985(C) relieves the clerk of liability where the order does not specify each location and the information to be redacted, and that whether redaction rather than full expungement is the correct request turns on who else appears in the record.

The Article 993 supplemental sheet (LA-CCRP-ART-993)

Article 993 is the statutory supplemental sheet, and Article 986(B) permits supplemental forms so long as they adhere to it. It is a participant-completed continuation sheet with the same eligibility check-boxes as the motion, grouped by arrests that did not result in conviction, misdemeanour convictions and felony convictions. Retained by Edition 1.1 as a source-gated asset. Its absence would restrict only multi-count cases; a single-count packet does not need it. Output strategy corrected to custom_pleading by rcap-la-arts-993-995-998-output-strategy-memo-correction, against the adjudication at rcap-la-arts-993-995-998-html-source-output-strategy-adjudication. There is no official PDF of this article: the Legislature publishes the controlling text as HTML on its own article page, and the retained capture is a browser print of that page rather than an issuer publication, so official_pdf_fill can only resolve to a missing source. process_guidance is equally wrong, because a participant submission exists on this component. The article remains the authority and the source identity, which is why officialFormId and officialSourceUrl are kept. Article 986(A) makes the statutory forms exclusive, so the rendering must reproduce the Legislature's own words rather than paraphrase them, and under Article 986(C) the court name is the only authorized variation. The Louisiana Supreme Court's local city and parish packet is not a statewide substitute and must not be used as one. No template exists yet, none is counsel-approved, and no implementation is authorized here. Article 993 is one statutory sheet carrying three Yes/No sections - arrests without conviction, misdemeanour convictions and felony convictions - so a template must render it as a single sheet and must not be split into three. The Article 986(B) adherence requirement is unchanged: a supplemental form is permitted only so far as it adheres to the statutory form. The sheet is participant-completed throughout.

What the record does not settle (4 open question(s))

- Articles 987, 988, 989, 991, 992 and 994 - the Article 986 mandatory forms on which every Louisiana motion track depends - are retained by no Master Library Edition 1.1 asset. Edition 1.1 holds the Louisiana statutory text only for Articles 990, 993, 995, 998 and 999.1, and the repository holds Articles 987 through 994 solely as generic legis.la.gov browser-print HTML captures, which the edition does not treat as workflow documents. Confirm the canonical source form for each and adopt them in a successor edition before any Louisiana packet is released. (impact: release_blocker; affects: correct_form)

- Whether the Article 989 ex parte route through an Affidavit of No Opposition is practically obtainable, and what the district attorney, the Bureau and the arresting agency each require before executing one. This determines whether a Louisiana packet ordinarily avoids a hearing. (impact: nonblocking_research_note; affects: participant_instructions)

- Title XXXIV was amended three times in the 2024 Regular Session - Acts 270 (Articles 972 and 983(G); enacting 999 and 999.1), 560 (enacting 985.3) and 580 (Article 978) - after the reviewed source notes, which ran through 2023. No 2025 or 2026 session amendment to Title XXXIV was located. Louisiana needs the scheduled annual re-verification the review recommended, on the same footing as Kansas. (impact: nonblocking_research_note; affects: governing_mechanism)

- Whether the Article 989 motion requires any distinct pleading or election to request redaction relief under Article 985 rather than full expungement, given that the redaction paragraph appears in the Article 992 order rather than in the motion, and that Article 985(A) speaks of petitioning the court. (impact: release_blocker; affects: packet_components)

What this packet is not

This built packet is review evidence. It is pending independent completeness verification, raster acceptance, visual review and counsel review. It is not approved for live use, it opens no route, and it is not legal advice.

Filing instructions - Expungement by Redaction of Records with References to Multiple Individuals (La. C.Cr.P. art. 985)

Prepared for Maria-Alejandra O'Shaughnessy-Whitfield.

- Filing: File the Article 989 Motion for Expungement with the proposed Article 991 Order and the proposed Article 992 Order of Expungement with the clerk of court in the parish of arrest or conviction. Article 972.1 gives district courts, city and parish courts, mayor's and traffic courts, juvenile and family courts, and the New Orleans municipal and traffic courts authority within their trial jurisdiction. Article 986 provides that only the forms in Articles 987, 988, 989, 990, 991, 992, 993, 994, 995 and 998 shall be used, so there is no drafted pleading and no local variant; Article 986(C) lets a clerk alter the form only to show the name of that court.

- Where: Clerk of court for the parish of arrest or conviction. File the Article 989 motion with the proposed Article 991 and Article 992 orders, selecting the redaction relief in the Article 992 order. The clerk serves under Article 979.

- Venue: The court with trial jurisdiction over the offence in the parish of arrest or conviction, under Article 972.1.

- What the registry says about filing: File the Article 989 Motion for Expungement with the proposed Article 991 Order and the proposed Article 992 Order of Expungement with the clerk of court in the parish of arrest or conviction. Article 972.1 gives district courts, city and parish courts, mayor's and traffic courts, juvenile and family courts, and the New Orleans municipal and traffic courts authority within their trial jurisdiction. Article 986 provides that only the forms in Articles 987, 988, 989, 990, 991, 992, 993, 994, 995 and 998 shall be used, so there is no drafted pleading and no local variant; Article 986(C) lets a clerk alter the form only to show the name of that court.

- What it costs: Article 983(A) caps the total cost at five hundred fifty dollars, collected by the clerk at filing and non-refundable even if the motion is denied.

- Fee exemption: Article 983(F) through the Article 988 Motion for Fee Exemption where the underlying basis meets its grounds.

- Service: The participant does not serve anyone. Under Article 979 the clerk of court serves notice of the motion by United States mail or electronically on the district attorney of the parish of conviction, the Louisiana Bureau of Criminal Identification and Information and the arresting law-enforcement agency, and files a certificate of service showing the mailing date. Under Article 982, if expungement is granted the clerk serves the order and judgment on the district attorney, the Bureau, the sheriff of the parish of conviction and the arresting agency.

The order of operations the record fixes: order the background check and watch its sixty-day life; deliver any Article 988 fee exemption to the district attorney before filing and expect it back within fifteen days; request whichever certification letters the chosen basis needs; file with the clerk with the fee or the returned exemption; the clerk serves under Article 979; entities have sixty days from service to object under Article 980, extendable once by not more than thirty days; an Affidavit of No Opposition from each named entity supports an ex parte grant; if expungement is granted the clerk serves the order and judgment under Article 982.

Packet set: la-985-expungement-by-redaction-set